IMPARTIAL ANALYSIS OF MEASURE S

First established in 1991, the Amador County Abandoned Vehicle Authority has been responsible for the abatement, removal, or disposal as a public nuisance of abandoned, wrecked, dismantled, or inoperative vehicles, or parts of vehicles from public and private property throughout Amador County, including its incorporated cities.

Authorized by the California Vehicle Code, the Abandoned Vehicle Authority is funded through an annual fee on all vehicles registered within Amador County at a rate of $1.00 per vehicle and an additional $2.00 for certain commercial vehicles. The fee, known as the AVA Fee, is collected by the California Department of Motor Vehicles and distributed directly to the Abandoned Vehicle Authority.

The AVA Fee must be renewed every 10 years, and following the passage of Proposition 26 in 2010, AVA Fee became subject to voter approval. In 2012, Amador voters approved the renewal of the AVA Fee and then in 2022 rejected the Fee. This Measure seeks to re-establish the AVA Fee.

The AVA Fees can only be used to support the abatement, removal, or the disposal as a public nuisance of any abandoned, wrecked, dismantled, or inoperative vehicle or parts of vehicles from private or public property. Also, the State Controller is required to review annually the activities of the AVA, and the Controller has the authority to suspend the collection of the Fee if it is determined that the funds are not being used appropriately or that the AVA has accumulated funds in excess of its needs for its abatement activities.

Measure S has been placed on the ballot by the Amador County Board of Supervisors together with the City Councils of Amador City, Ione, Jackson, Plymouth, and Sutter Creek.

A “YES” vote on Measure S is a vote to re-establish the collection of the AVA Fee in the amount of $1.00 per vehicle registered in Amador County, and an additional $2.00 for certain commercial vehicles for a 10-year period.

A “NO” vote on Measure S would preclude the collection of the AVA Fee, which provides the only funding for the continued operation of the Amador County Abandoned Vehicle Authority.

Collection of the AVA Fee will be re-established only if Measure S is approved by a two-thirds majority of qualified voters.

/s/ Gregory Gillott, Amador County Counsel